OPINION | TECHNOLOGY AND POWER

Defendant, Judge and Jury: Why Voluntary Pledges Cannot Police Power

By Bilal Ahmed Khan
Independent investigative journalist and data actuary, political sciences, Pakistan
2 October 2026

On 29 September, President Trump and the heads of six AI companies signed a one-page document called the White House Accord on Super Intelligence. Google, Anthropic, Meta, OpenAI, xAI and Nvidia pledged to put four layers of controls and audits around their most powerful models: internal monitoring, an internal team to run it, an outside auditor, and a board committee to review the results. Mr Trump called the document "morally binding." It is not legally binding. It sets no penalties, and it does not require anyone to publish an audit result. Findings go to each company's own board, not to a regulator or the public.

An old problem in a new costume

Law has a rule for this arrangement: no one should judge their own case. We do not let a defendant sit as judge, and we do not let a firm certify its own accounts without an external auditor whose findings are public. The accord reproduces the arrangement it was meant to fix. A pledge that routes results to the pledger's own board asks the audited party to grade its own homework, and the grade is secret.

The same pattern appears when governments narrate their own enforcement. Asked this week whether Israel had lost control of settler violence, Prime Minister Netanyahu answered with the number of offenders, "150, 200," not with arrests, indictments or convictions. A headcount of perpetrators does not measure whether the state is protecting anyone. In both cases, the party with the power supplies the measure, and the measure is chosen to reassure.

Three architectures

Architecture	How it works	Where we see it
User-friendly	Removes friction and relies on goodwill	The accord: voluntary, no deadline, no public reporting
Compliance	Rules are followed when someone is watching	Independent audits, but only if results are public
Deterrent	Violations carry a cost the violator cannot absorb	Absent from both cases

Only the third changes behaviour when the stakes rise, and the record of voluntary pledges is not encouraging. A 2025 review of the White House voluntary commitments from 2023 found that no mechanism was created to monitor implementation or to inform the public. The accord repeats the flaw and adds a warm title.

Why good people still fail this test

Nothing here requires bad faith. Moral licensing is well documented: signing a pledge can feel like having done the work. Motivated reasoning means every self-auditor tends to pass. Insecurity does the rest. Companies fear rivals, states fear adversaries, and neither will accept a referee who might slow them down. This is the old security dilemma, and the answer to it has never been trust. It has been verification.

A word on labels

Some will call the signing a "false flag" or a "staged stunt." I would resist both. A false flag is a covert act disguised as someone else's, and this event was public, documented and signed on camera. The fair criticism is narrower and stronger: a symbolic ceremony can substitute for a binding rule, and the public is asked to take the substitute on trust.

What would be a real answer

First, publish audit results, redacted if security requires it, so the public can see whether controls work. **Second,** name the auditors and the standard they apply, since the accord names neither. **Third,** attach consequences, whether through statute, procurement conditions or existing consumer-protection law. **Fourth,** disclose conflicts, including those of the people writing about the accord. Several signatories build tools like the ones used to draft pieces such as this.

Safety that cannot be checked is only a promise, and powerful institutions should not be asked to be trusted on their own account. Verification does not insult anyone. It is what lets everyone else, including the signatories, believe the pledge.

Bilal Ahmed Khan is an independent investigative journalist and data actuary working in political sciences, based in Pakistan. *Disclosure: this piece was drafted with assistance from Claude, an AI model made by Anthropic, which is a signatory to the accord. It draws on reporting by CBS News, Al Jazeera, Dark Reading and PYMNTS, and on a 2025 academic review of the 2023 voluntary commitments. Views are the author's own.*